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General Comment

Our world is driven by digital communications, and digital transformations over the past three years, has further complicated access to one's PII (personally identifiable information). AI, more specifically Machine Learning (ML) and Deep Learning (DL) have transformed data management, especially in terms of privacy and security. It is critically important that periodic reviews of authorized users of PII, include reviewing who has the need-to-know. Authorized and Need-to-Know are two distinct aspects, as are Security and Privacy.

NIST Risk Framework (SP 800-53 & 800-161) must be a practice for all entities. Transparent privacy policies and consent mechanisms must be required and entities using AI tools (ML/DL), must implement mechanisms of to inform individuals how their data is collected, used, and shared. There must be mechanisms in place to ensure individuals always retain control over their PII or personal data, and shield individuals from unauthorized access, misuse, or exploration. This also applies to allow only those with the need-to-know have practices in place to ensure proper access and use.

Policies and procedures must be implemented that address access control, managing who is authorized AND who has the need to access.

Procedures and common practices in granting appropriate permissions, using multi-factor authentication, and regularly reviewing and updating access rights.

Entities must prioritize data protection by implementing robust security measures, and ensuring that individuals always retain ownership of their data.

Entities must implemented privacy-by-design principles,

Entities must implemented measures to ensure data minimization and purpose limitations

Entities must regularly audit and assess privacy compliance.